

26STCV12777 26STCV12777

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Case Number: 26STCV12777 Hearing Date: August 11, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

DALE R. HERBST,

Plaintiff,

v.

HILL BROTHERS CHEMICAL COMPANY, et al.,

Defendants.

Case No. 26STCV12777

Hearing Date: August 11, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

SPECIALLY APPEARING DEFENDANT ROGERS
CORPORATION'S MOTION TO QUASH PLAINTIFF'S COMPLAINT FOR LACK OF PERSONAL
JURISDICTION

I.

Background

On May 12, 2026, Plaintiff Dale R. Herbst filed his first amended complaint for personal injury alleging that he developed malignant mesothelioma from direct occupational exposure to asbestos and asbestos-containing products.

On July 6, 2026, Defendant Rogers Corporation ("Rogers") filed the operative motion to quash Mr. Herbst's complaint, arguing that the court lacks personal jurisdiction over Rogers because Mr. Herbst failed to identify any Rogers product that allegedly caused his injuries and failed to establish the requisite connection between said product and Rogers' California conduct.

On July 29, 2026, Mr. Herbst opposed, arguing that this court maintains personal jurisdiction over Rogers because Rogers purposefully availed itself of California's benefits and because the amended complaint alleges exposure to asbestos-containing phenolic compounds manufactured by Rogers. Mr. Herbst further argues that Rogers fails to address the reasonableness prong. In the alternative, Mr. Herbst requests leave to conduct jurisdictional discovery.

On August 4, 2026, Rogers replied, arguing that Mr. Herbst fails to establish his claims arise out of Rogers' unrelated California conduct. As to the jurisdictional discovery request, Rogers argues that Mr. Herbst failed to justify a continuance because he has failed to demonstrate discovery is reasonably likely to produce evidence establishing personal jurisdiction.

Mr. Herbst meets his burden of proving that Rogers Corporation purposefully availed itself of the California market and that his claims arise from Rogers' contacts with California. The motion to quash service of summons and the complaint is denied.

II.

Evidentiary Objections

Defendant's objections:

Sustained:

1. Plaintiff's

Amended Responses to General Order Standard Interrogatories in this action (Opp. Exh. 1). Rogers objects to Mr. Herbst's amended responses to general order standard interrogatories that are attached to the opposition on the grounds that interrogatory responses may be offered into evidence "only against the responding party." (Code Civ. Proc., § 2030.410.) Rogers also objects on hearsay grounds.

Code

of Civil Procedure section 2030.410 states in relevant part: "At the trial or any other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party." Thus, pursuant to section 2030.410, because Mr. Herbst, the responding party, used his answers to interrogatories against Rogers, the objection is sustained.

Overruled:

2. Plaintiff's

Supplemental Preliminary Fact Sheet (Opp. Exh. 2). Rogers objects to Mr. Herbst's Supplemental Preliminary Fact Sheet that was attached to both the amended complaint and the opposition on the grounds that an unverified pleading has no evidentiary value in determining personal jurisdiction.

Pursuant

to Case Management Standing Order RE: Discovery in All Coordinated LAOSD Cases (Aug. 11, 2014), a "preliminary fact sheet does not need to contain a verification by the Plaintiff(s). The preliminary fact sheet is to be used solely for informational purposes." (Standing Order, at p. 3 [emphasis added]; see *Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th 964, 976 [In opposing a motion to quash, a "plaintiff must come forward with

affidavits and other competent evidence to carry this burden and cannot simply rely on allegations in an unverified complaint.' [citation omitted]".) However, the fact sheet is not being put forth as evidence but rather as a component of the amended complaint and its allegations. Accordingly, the objection is overruled.

III.

Discussion

A.

Legal Standard

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defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).)¿

"A

court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)¿

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an

unverified complaint or vague and conclusory assertions of ultimate facts.
[Citation.]" (Strasner, supra, 5 Cal.App.5th at p.
222.)

A

defendant is subject to a state's general jurisdiction if its contacts
"are so continuous and systematic as to render [it] essentially at home in
the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.)
A nonresident defendant may be subject to the specific jurisdiction of the
forum "if the defendant has purposefully availed himself or herself of
forum benefits [citation], and the 'controversy is related to or 'arises
out of' a defendant's contacts with the forum." [Citations.] (Vons
Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This
test does not require a "causal relationship between the defendant's
in-state activity and the litigation." (Ford Motor Co. v. Montana
Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise
out" of standard "asks about causation," but "relate
to" does not. (Ibid.) "[W]hen a corporation has 'continuously
and deliberately exploited [a State's] market, it must reasonably anticipate
being hauled into [that State's] court[s] to defend actions 'based on'
products causing injury there." (Id. at p. 364.)

B.

General Jurisdiction

General jurisdiction is
not at issue here.

Plaintiff does not argue that Rogers is subject to
general jurisdiction in California. Accordingly, the court analyzes whether Mr.
Herbst presents evidence that Rogers is subject to specific jurisdiction in
California.

C.

Specific Jurisdiction

A court may
exercise specific jurisdiction over a plaintiff when three elements are
satisfied: "(1) 'the defendant has purposefully availed himself or herself of
forum benefits' [citation]; (2) 'the controversy is related to or 'arises out

of” [the] defendant’s contacts with the forum’ [citation]; and (3) ““the assertion of personal jurisdiction would comport with ‘fair play and substantial justice’” [citation.]” (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

Here, Rogers

argues that there is no factual basis to establish specific jurisdiction because Mr. Herbst has not identified a Rogers product, and even if he could identify one, Mr. Herbst still failed to establish a connection between the product and Rogers’ California conduct. (Motion at p. 6 [“Here, even if Mr. Herbst could establish that he worked with a product incorporating Rogers’s phenolic molding compounds, that alone would not establish specific jurisdiction. He would still have to produce competent evidence that Rogers itself directed the injury-causing product toward California. If Rogers supplied phenolic molding compounds only to an out-of-state manufacturer, and that manufacturer later incorporated those compounds into a finished product that ultimately reached California, the relevant California conduct would be that of the downstream manufacturer—not Rogers.”].)

1.

Purposeful Availment

Purposeful availment “focuses on the defendant’s intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum.” (Pavlovich, supra, 29 Cal.4th at p. 269.)

Here, Rogers’ argument as to the lack of specific jurisdiction focuses primarily on the relatedness prong. (Mot., at p. 4.) In its Reply, Rogers states that it “has never disputed” that it “purposefully availed itself of the privilege of conducting business in California.” (Reply at p. 5.)

Accordingly, the court finds that this prong is not in dispute and turns to the relatedness prong.

2.

Relatedness

A plaintiff may present

sufficient evidence of relatedness where there is evidence the defendant “systematically served a market in [the forum state] for the very [products] that the plaintiffs allege malfunctioned and injured them in those States.” (Ford, *supra*, 592 U.S. at p. 366.) The inquiry must be focused on determining whether there is “a connection between the forum and the specific claims at issue.” (Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County (2017) 582 U.S. 255, 265.) Accordingly, the court looks to determine whether Mr. Herbst presented evidence that Rogers served the California market for the same product Mr. Herbst alleges injured him.

Here, Mr. Herbst argues

in opposition that the Supplemental Preliminary Fact Sheet in his amended complaint “alleges exposure to asbestos-containing phenolic compounds manufactured by Rogers” while working at Fesco, a Santa Ana plastic product manufacturing facility (Opp., at p. 6, Exh. 2.) Mr. Herbst further argues that Rogers admitted to selling phenolic molding compounds directly to California customers. (Opp., at pp. 6-7; Exh. 5 at 13:7-17, 27:21-28:12.) Thus, the amended complaint sufficiently alleges “exposure to Rogers’s raw materials used in the plastics manufacturing process, not a finished product... [and] Mr. Herbst’s alleged exposure is connected to Rogers’s direct sales of phenolic molding compounds to California.” (Opp., at p. 7.)

In reply, Rogers argues

that Mr. Herbst’s evidence “does not identify a Rogers product, and his own sworn testimony confirms that he was unfamiliar with Rogers Corporation and had no reason to believe he ever worked with or around one of its products. Without evidence establishing that Mr. Herbst encountered a Rogers product, the Court cannot determine whether Rogers supplied that product to California, whether Mr. Herbst encountered it in California, or whether his alleged injury arose out of Rogers’s California conduct. Instead, Mr. Herbst asks the Court to infer each of those essential jurisdictional facts.” (Reply at pp. 4-5.) Rogers further argues that the evidence “concerning Rogers’s general California contacts cannot establish the requisite connection between Rogers, California, and this litigation; it therefore does not establish specific jurisdiction.” (Reply at p. 5.)

Rogers also puts forth Mr. Herbst's deposition testimony in this action, taken on July 7, 2026, to support its argument that Mr. Herbst lacks relevant knowledge about not only Rogers' products, but also the corporation itself. (Thacker Decl., Exh. C.) Mr. Herbst states he is not familiar with Rogers and does not have reason to believe that he has ever worked with or around a product manufactured or supplied by Rogers. (Id., at 151:23-25-152:1-4.) Mr. Todd M. Thacker, Rogers' counsel, also states in his declaration that when he introduced himself to Mr. Herbst prior to the deposition, Mr. Herbst asked "who is Rogers Corporation?" (Thacker Decl., ¶ 2.)

The court finds that Mr. Herbst has satisfied his burden to establish the relatedness of Rogers' forum contacts to his causes of action. In the amended complaint and his opposition, Mr. Herbst alleges he was exposed to asbestos-containing phenolic compounds manufactured by Rogers while working at the Fesco manufacturing facility. (Opp. at p. 6, Exh. B.) Mr. Herbst also presented evidence that Rogers sold the asbestos-containing phenolic compounds in California during the relevant time period. In response to Special Interrogatory No. 15, Rogers states that between 1971 and 1980, it had about 10 Program Customers, or customers who purchased its phenolic material for production of manufactured parts, in California: "Amphenol, Arrowheart, Crest Molded Products, Imperial Molded, ITT Cannon, Olympic Plastics, REO Plastics, South Plastics, and Stanford Applied Engineering." (Opp., Exh. 7 at p. 14.) Rogers further stated that it did not market or sell its phenolic materials through third party distributors or retail locations. (Id., at pp. 15-16.) Mr. Herbst proves that Rogers had sales engineers in California during the relevant time period "whose job description included selling Rogers Phenolic Materials to plastic molding companies in California." (Id., at pp. 20-21.)

At the jurisdictional stage, the merits of the complaint are not at issue. (Bader v. Avon Products, Inc. (2020) 55 Cal.App.5th 186, 198 [Plaintiff in an asbestos products liability case was not required to prove at the jurisdictional stage that asbestos was in the talc powder at issue.].) Although proof of jurisdictional facts may overlap with the merits of a claim, these situations are limited and none apply here. (Id. ["Proof of jurisdictional facts may overlap with the merits, for example, where the plaintiff must make a showing of alter ego or merger in order to establish that a third party's contacts with the forum can

be attributed to the defendant [citation] or where there must be some evidence that the defendant was involved in a conspiracy [citation].).) Allegations that Mr. Herbst was exposed to asbestos-containing phenolic compounds manufactured by Rogers while working at the Fesco manufacturing facility at the time Rogers operated in California are sufficient to show that Mr. Herbst's causes of action against Rogers arise from Rogers' contacts with California.

Accordingly, Plaintiffs meet their burden to show that their claims arise from Farrell's contacts with California.

3.
Fair Play and Substantial Justice

"In making this determination [as to whether the assertion of jurisdiction would comport with fair play and substantial justice], the court must consider the burden on the defendant, the interests of the forum State, and the plaintiff's interest in obtaining relief. It must also weigh in its determination the interstate judicial system's interest in obtaining the most efficient resolution of controversies; and the shared interest of the several States in furthering fundamental substantive social policies." (Snowey v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1070.)

Mr. Herbst argues in opposition that "Rogers has not met its burden of demonstrating that this court's exercise of specific jurisdiction would be unreasonable." (Opp., at p. 7.) Specifically, Rogers' fails to "address the reasonableness analysis whatsoever." (Ibid.) Mr. Herbst incorporates the same facts presented for the previous two prongs to the reasonableness prong.

The court agrees with Mr. Herbst's contentions. Rogers does not address the reasonableness prong in either its motion or reply. Instead, the bulk of both papers' analysis pertains to the relatedness prong.

The court finds that factors weigh in favor of litigation in California. Mr. Herbst alleges he was

exposed to asbestos in California. (Amended Compl., Exh. A.) California has an interest in resolving this dispute in California because Mr. Herbst sustained his injuries in California. Additionally, other Defendants to this action either reside in California or are properly sued in California. (Id. at ¶ 3.) The interstate judicial system has an interest in allowing this matter to stay in California because it is most efficient to resolve Mr. Herbst's dispute with Rogers in California together with the other Defendants. The factors thus weigh in favor of a finding that this court's assertion of jurisdiction comports with fair play and substantial justice.

IV.

Conclusion

Mr. Herbst meets his burden of proving that Rogers Corporation purposefully availed itself of the California market and that his claims arise from Rogers' contacts with California. The motion to quash service of summons and the complaint is denied.¿

Plaintiff Herbst is ordered to give notice.¿